

Vijay Shukla v. Shri Shadab Ahmad, Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Ltd. and Another

Allahabad High Court · Single Judge · 5 March 2024 · 2024:AHC:39563 · Contempt Application (Civil) No. 9494 of 2023 · **Second contempt dismissed as misconceived and devoid of merits**

HEADNOTE

Where a consumer was given liberty to file an objection under para 6.5 of the U.P. Electricity Supply Code, 2005 to an excessive bill, to be decided by the Executive Engineer in accordance with law, civil contempt of that writ (and of a later order granting more time to reconsider) does not lie if no para 6.5 objection was ever filed. An application seeking One Time Settlement, without applying on the designated government website, is not a para 6.5 objection. The second contempt application was dismissed as misconceived and devoid of merits. The Court did not decide the bill.

FACTUAL SUMMARY

Vijay Shukla challenged an excessive electricity bill in Writ-C No. 22798 of 2022. On 10 August 2022 the High Court disposed of that writ without opinion on merits, giving him liberty to submit an objection under para 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer of Dakshinanchal Vidyut Vitran Nigam Limited within four weeks, to be decided in accordance with law after hearing, with a limited stay of coercive action.

He instead applied on 5 September 2022 for One Time Settlement. The Executive Engineer on 21 October 2022 said OTS is availed by applying on UP.ENERGY.IN. A first contempt was decided on 27 April 2023 by granting three more months to reconsider; a further order of 20 December 2023 informed him of a fresh OTS window (8 November to 31 December 2023, said to have been extended to 16 January 2024). He filed this second contempt against Executive Engineer Shri Shadab Ahmad, alleging wilful disobedience of the 10 August 2022 writ and the 27 April 2023 order.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

A Clause 6.5 relegation is not disobeyed where the consumer never filed a 6.5 objection and instead sought OTS

QUESTION

Does civil contempt lie of a writ directing the Executive Engineer to decide a para 6.5 objection, where the consumer never filed such an objection and instead sought One Time Settlement without applying on the designated website?

HOLDING

No. The 10.08.2022 writ in Writ-C No. 22798 of 2022 gave liberty to submit an objection under para 6.5 of the U.P. Electricity Supply Code, 2005, to be decided in accordance with law if filed in time. The applicant never filed any such objection. His 05.09.2022 application only sought One Time Settlement; the Executive Engineer on 21.10.2022 and again on 20.12.2023 (after the 27.04.2023 first-contempt order granting three more months) told him OTS is availed by applying on UP.ENERGY.IN. He did not so apply. His conduct was held questionable. The second contempt application was dismissed as misconceived and devoid of merits.

¶ 7-9

FLAG Contempt dismissed as misconceived. The Court recites the earlier writ's para 6.5 relegation and finds no 6.5 objection was ever filed; it does not parse sub-clauses 6.5(a)/(b)/6.5B. An OTS request is treated as not a para 6.5 billing objection. Source PDF also contains listing orders of 08.01.2024 and 23.01.2024 (Vikas Budhwar J.) and 27.02.2024 (Dinesh Pathak J., time to file compliance affidavit); the judgment under record is 05.03.2024 (2024:AHC:39563).

clause-6.5-objection-must-be-in-proper-form

A 05.09.2022 application seeking One Time Settlement, with no endeavour to have the bill corrected under para 6.5, is not a Clause 6.5 objection. The Executive Engineer was not in contempt for not treating it as one; OTS is a government policy availed on UP.ENERGY.IN. ¶ 7-8

billing-objection-to-executive-engineer-under-6.5

The 10.08.2022 writ directed the Executive Engineer to decide a para 6.5 objection if filed. That duty is not engaged, and contempt does not lie, where no such objection was submitted. ¶ 7-8

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE EXCESSIVE ELECTRICITY BILL

The contempt court did not examine the bill; it held that no para 6.5 objection was ever filed. ¶ 7-9

NOT DECIDED — ELIGIBILITY FOR ONE TIME SETTLEMENT

The Court recorded that the applicant never applied on UP.ENERGY.IN; it did not decide whether he would have qualified. ¶ 7-8

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.